# Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers, Ajax Town Hall and Electronically on Monday, April 17, 2023

***Alternative formats available upon request by contacting:***
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

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| Present: | Mayor | S. Collier |
| | Regional Councillors | M. Crawford |
| | | S. Lee |
| | Councillors | R. Tyler Morin |
| | | N. Henry |
| | | L. Bower |
| Regrets: | Regional Councillor | J. Dies |

**1. Call to Order & Acknowledgement of Traditional Treaty Lands**

Deputy Mayor Crawford called the meeting to order at 7:12 p.m. and acknowledged traditional treaty lands.

**2. Disclosure of Pecuniary Interest**

Mayor Collier declared a pecuniary interest with respect to agenda item 10.2, as he is a Veteran and has Veteran licence plates on his vehicles.

On behalf of Council, Mayor Collier extended condolences to the family of Gary Dies, husband to Regional Councillor Dies, who passed away after a courageous battle with heart disease.

**Closed Session (6:01 p.m.)**

**3. Authority to Hold a Closed Meeting and Related In-Camera Session**

Moved by: R. Tyler Morin
Seconded by: S. Lee

That Council convene to a Closed Session pursuant to Section 239 (2) (e) of the *Municipal Act, 2001,* as amended, to discuss a matter pertaining to litigation or potential litigation, including matters before administrative tribunals, affecting the municipality or local board.

CARRIED

3.1 **Central Park Ajax – Receivership Update**

**Open Meeting (7:12 p.m.)**

**Ratify Actions Taken in Closed Session**

Moved by: S. Collier
Seconded by: N. Henry

That all directions approved during the Closed Session be ratified.

CARRIED

**4. Adoption of the Minutes**

Moved by: R. Tyler Morin
Seconded by: S. Lee

That the minutes of the Regular Meeting of Council held on March 27, 2023 be adopted.

CARRIED

## 5. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Jason McWilliam, Manager of Legislative Services/Deputy Clerk, noted that no questions had been received regarding the contents of the meeting agenda.

## 6. Delegations, Presentations, and Public Meetings

### 6.1 Delegation: Intimate Partner Violence – Epidemic Declaration

Laura Oliver, Fund Development & Communications Manager, Luke's Place and representative of The Violence Prevention Coordinating Council of Durham (VPCC) provided an overview of the VPCC organization and reviewed recommendations from the 2022 Renfrew County inquest into the murders of Carol Culleton, Anastasia Kuzyk and Nathalie Warmerdam. L. Oliver discussed Intimate Partner Violence (IPV) behaviours, key facts, Town of Ajax's role, IPV statistics, and femicides in Durham Region.

Council Members asked questions regarding shelter demand/supply, awareness initiatives, and underreported IPV cases. L. Oliver responded to questions from Council Members.

On behalf of Council, Deputy Mayor Crawford thanked L. Oliver for her presentation.

With the consent of Members present, item 10.3 was advanced in the order business.

## 10. Business Arising from Notice of Motion

### 10.3 Recognizing the Intimate Partner Violence Epidemic

Councillor Henry and Regional Councillor Crawford introduced the motion and reviewed its contents.

Moved by: N. Henry
Seconded by: M. Crawford

**WHEREAS** Intimate partner violence (IPV) is physical, sexual and emotional abuse and aggression that occurs in an intimate relationship;

**AND WHEREAS** on the morning of September 22, 2015, Carol Culleton, Anastasia Kuzyk and Nathalie Warmerdam were murdered by a former partner;

**AND WHEREAS** on June 28, 2022, a five-person jury established as part of a coroner's inquest into the events of September 22, 2015 delivered 86 recommendations;

**AND WHEREAS** specific legislation addressing family and domestic violence has been passed by six provinces and three territories; however, Ontario has not implemented this type of legislation;

**AND WHEREAS** the Violence Prevention Coordination Council of Durham (VPCC), which represents 35 local agencies including Luke's Place, Herizon House, and the Durham Rape Crisis Centre, reported a significant increase in demand for assistance from local IPV support providers on behalf of member Victim Services of Durham Region, with IPV victim support up 32% over four years and sexual violence victim support up 277% over four years;

**AND WHEREAS** the City of Ottawa, Renfrew County, and Lanark County have passed motions declaring an IPV epidemic, and acknowledging the 86 recommendations in the Renfrew County Inquest;

**NOW THEREFORE BE IT RESOLVED THAT:**

1. The Ontario Government declare an IPV epidemic, as per recommendation #1 of the Renfrew County Inquest; and

2. The Region of Durham declare an IPV epidemic and integrate IPV into the Region's Community Safety and Well-Being Plan, as per recommendation #10 of the Renfrew County Inquest; and

3. This motion be distributed to the Ajax MPP Patrice Barnes, the Ministry of the Attorney

General, the Ministry of Women's Social and Economic Opportunity, the Region of Durham and Durham municipalities, Renfrew County, and the Association of Municipalities of Ontario.

CARRIED

6.2 **Delegation & Proclamation: Youth Week 2023**

Ashley McWhirter, Community Recreation Supervisor – Youth Development, provided an overview of the Youth Engagement Advisory Committee's (YEAC) mandate and explained the purpose of Youth Week in Ajax. A. McWhirter introduced Anthony Baptiste-Calliste, Youth Engagement Advisory Committee Member and Martel Whittick, Youth Engagement Advisory Committee Member. A. Baptiste-Calliste reviewed activities conducted by the YEAC throughout the year. M. Whittick reviewed events occurring during Youth Week, including the upcoming Mental Health Youth Symposium event on May 4th.

Deputy Mayor Crawford presented the proclamation certificate and proclaimed May 1-7, 2023 as Youth Week in the Town of Ajax.

Council Members asked how they can support youth in Ajax. A. Baptiste-Calliste responded to the question from Council Members.

6.3 **Presentation: Durham Meadoway Visioning Study Update**

Alia Tulloch, Transportation Planning Analyst, Durham Region, delivered a presentation regarding the Durham Meadoway Visioning Study Update. A. Tulloch provided an overview of the study and reviewed objectives, project timelines, and progress to date including community engagement activities, boundary changes, preferred and interim routes, route evaluation criteria and key elevation areas. Chris Leitch, Principal Planner, Durham Region reviewed preferred routes and interim routes (where applicable) for Segments 4 to 7. A. Tulloch reviewed enhancements and amenities associated with the multi-use path, focal points including expanded opportunities for Paulynn Park, preliminary concept sketches, and next steps.

Council Members asked if future enhancements are planned for the Taunton Road/Harwood Avenue segment. A. Tulloch and C. Leitch, responded to the question from Council Members.

On behalf of Council, Deputy Mayor Crawford thanked A. Tulloch and C. Leitch for their presentation.

6.4 **Presentation: Lakeridge Health Update for Council**

This presentation has been deferred to the May 15th Council meeting.

6.5 **Presentation: Ajax Arts & Culture Plan Update**

Robert Gruber, Manager of Community and Culture Development, provided an overview of the Ajax Arts & Culture Plan, and introduced consultants Louisa Plant, Manager, Nordicity (Vancouver) and Mila Dechef-Tweddle, Director, Nordicity (Toronto).

L. Plant discussed project objectives, project phases, community engagement initiatives, planning context, research findings/SWOT analysis including strengths, weaknesses and gaps, threats and opportunities, strategic planning framework, needs and preliminary goals, and next steps.

Council Members asked questions regarding target focus group categories and their findings. L. Plant and R. Gruber, responded to questions from Council Members.

On behalf of Council, Deputy Mayor Crawford thanked L. Plant for her presentation.

6.6 **Public Meeting: PDS-2023-16: Official Plan Amendment Application OPA21-A3**
**Zoning By-law Amendment Application Z5/21**
**Matrix Development Group**
**101 Pickering Beach Road & 235 Bayly Street East**

Sean Jeffrey, Development Planner, delivered a presentation reviewing the contents of the written report and recommendations contained therein. S. Jeffrey discussed the subject lands, official plan designations, current zoning of the subject lands, submitted planning applications, proposed development, proposed rendering, reports and studies, planning

policies, public consultation, and staff recommendations.

Council Members asked questions regarding traffic, parking and environmental impacts, proximity of the subject lands to key natural heritage features and lands designated Environmental Protection (EP), rationale for reduced building height, minimum parking requirements, timelines associated with the implementation of a southbound left turn lane along Pickering Beach Road, opportunities to install signage to deter “U-turns” on Powers Valley Court, tree preservation, Transportation Demand Management (TDM) strategies, development details, and opportunities to adjust signal timing. S. Jeffrey, Geoff Romanowski, Director of Planning & Development Services, and Bruno Scopacasa, Supervisor of Development Approvals, responded to questions from Council Members.

Deputy Mayor Crawford declared the meeting to be a public meeting and invited comments and questions from the public.

Joyce Gibbons, Ajax resident, expressed concerns regarding environmental impacts, increased density, building height, traffic congestion, public safety, increased collision rates, parking supply, inadequate infrastructure to support increased traffic, unattractive urban development, and size of the development proposal. Council Members sought clarification regarding collisions rates and questioned the source of information. Michael Perotta, Ajax resident, responded to the question from Council Members.

Mohamed Rashid Rafeek, Ajax resident, expressed concerns regarding public safety, proximity of the development to the Bayly Street East and Pickering Beach Road corridors, and traffic congestion.

Bryan Wires, Ajax resident, encouraged Town staff and Council to conduct a site visit. B. Wires expressed concerns with the traffic impact study and traffic congestion.

There being no further questions or comments from the public, Deputy Mayor Crawford closed the public meeting and invited comments from the applicant.

Lindsay Dale-Harris, Senior Urban Planner, Bousfields Inc., spoke on behalf of the applicant and commended the efforts of staff and expressed support for the staff report and recommendations contained therein. L. Dale-Harris discussed transportation solutions related to access, parking and turning movements, environmental considerations namely the buffer area, tree planting and the conveyance of the Carruthers Creek Provincially Significant Wetland (PSW) Complex to the Toronto Region Conservation Authority (TRCA), building height, and building setbacks.

Council Members asked questions regarding appeal rights and the appeal process. G. Romanowski and B. Scopacasa, responded to questions from Council Members.

Moved by: S. Collier
Seconded by: S. Lee

1. That Official Plan Amendment Application OPA21-A3 be approved and that the implementing Official Plan Amendment (No. 72), as provided within Attachment 1 to this report, be considered for approval by Council at its meeting of April 17, 2023;

2. That Zoning By-law Amendment Application Z5/21 be approved and that the implementing Zoning By-law, as provided within Attachment 2 to this report, be considered for approval by Council at its meeting of April 17, 2023; and

3. That the Director of Planning and Development Services or their designate be authorized to grant draft approval of the future Draft Plan of Condominium application that may be required to facilitate the future development of the subject lands.

CARRIED

## 7. Correspondence

Moved by: R. Tyler Morin
Seconded by: L. Bower

That the report dated April 17, 2023 containing Items of Correspondence be received for information.

CARRIED

## 8. Reports

### 8.1. Community Affairs & Planning Committee Report

#### 8.1.1 Community Affairs & Planning Committee, April 3, 2023

Moved by: N. Henry
Seconded by: S. Collier

That the Community Affairs & Planning Committee Report dated April 3, 2023, be adopted.

CARRIED

### 8.2. General Government Committee Report

#### 8.2.1 General Government Committee, April 11, 2023

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the General Government Committee Report dated April 11, 2023 be adopted.

CARRIED

### 8.3 Summary of Advisory Committee Activities

None

### 8.4 Departmental Reports

#### 8.4.1. OES-2023-11: Contract Award – Parkette Grounds Maintenance

Council Members sought clarification regarding contract scope namely areas maintained. Dave Meredith, Director of Operations & Environmental Services, responded to the question from Council Members.

Moved by: S. Lee
Seconded by: N. Henry

1. That Council award the contract for Parkette Grounds Maintenance, to Unistar General Inc. in the estimated amount of $142,357.40 (inclusive of all taxes), for a period of 1 year.

2. That Council authorize Staff to renew the contract for an additional four, 1 year periods, pending an analysis and satisfactory performance review at the anniversary date of the contract, in the estimated amount of $621,029.30 (inclusive of all taxes).

CARRIED

#### 8.4.2. PDS-2023-17: Stormwater Fee and Credit Policy/By-law Update

Moved by: R. Tyler Morin
Seconded by: S. Lee

1. That this report titled “Stormwater Fee and Credit Policy/By-law Update” be received for information; and

2. That by-laws establishing the Stormwater Fee and Credit Policy and amending the Fees and Charges be presented to Council for approval.

CARRIED

## 9. Regional Councillors’ Report

None.

## 10. Business Arising from Notice of Motion

### 10.1 Drinking Water Fountains for Public Spaces

Councillor Bower and Councillor Tyler Morin introduced the motion and reviewed its contents. Council Members asked questions regarding design features, potable water at splash pads, opportunities to install water features at dog parks, and the number of new parks with water access forecasted. D. Meredith responded to questions from Council Members.

Moved by: L. Bower
Seconded by: R. Tyler Morin

**WHEREAS** the Town of Ajax offers access to drinking water fountains inside numerous Town facilities, but currently offers very few outdoor water fountains;

**AND WHEREAS** numerous Ajax parks have access to potable water for the purpose of splash pads, wading pools, etc.;

**AND WHEREAS** the Town has two new parks with water access planned in the capital budget to 2030, and four park retrofits to 2032;

**AND WHEREAS** by providing drinking water fountains, the Town can help eliminate the use of plastic water bottle waste in support of our climate change efforts;

**AND WHEREAS** drinking water fountains can also support the health and wellbeing of Ajax residents;

**AND WHEREAS** some drinking water designs double to offer a pet drinking station, which would benefit the thousands of Ajax homes that have a pet;

**AND WHEREAS** the cost of installing a drinking water found where access to potable water already exists is estimated to be between $1,000 to $1,500, not including upkeep, repair, and inspection.

**NOW THEREFORE BE IT RESOLVED THAT**:

Operations staff include drinking water fountains, where feasible, in the design of new parks with water access and parks with water access that are undergoing upgrades and/or refurbishment, including Exeter Park.

CARRIED

10.2 **Waterfront Parking for Veterans**

Councillor Tyler Morin and Councillor Bower introduced the motion and reviewed its contents.

Mayor Collier abstained from voting due to his declared pecuniary interest.

Moved by: R. Tyler Morin
Seconded by: L. Bower

**WHEREAS** to improve enjoyment of the waterfront for Ajax residents, the Town offers an annual waterfront parking permit program from May to September;

**AND WHEREAS** the Town of Ajax has a proud military history, serving as the home of the largest shell filling plant in the British Commonwealth during World War II, was named in honour of the Royal Navy ship H.M.S. Ajax and has celebrated veterans who served aboard the ship by naming local streets in their honour;

**AND WHEREAS** Ajax desires to further honour veterans and their commitment and service to Canada.

**NOW THEREFORE BE IT RESOLVED THAT:**

1. Vehicles with an Ontario Veteran graphic licence plate be permitted to park in designated parking areas at Rotary Park, Central Waterfront, and Paradise Beach without obtaining a resident waterfront parking permit beginning with the 2023 season; and

2. By-law Services staff bring forward an amending by-law to the May 15, 2023, Council meeting to implement the necessary changes; and

3. By-law Services and Communications staff update the information on the waterfront parking permit program information contained on the Town's website to communicate the change to the Ajax community.

CARRIED

10.4 **A Call to the Provincial Government to End Homelessness in Ontario**

Councillor Bower and Regional Councillor Crawford introduced the motion and reviewed its contents.

Moved by: L. Bower
Seconded by: M. Crawford

**WHEREAS** the homeless crisis is taking a devastating toll on families and communities, undermining a healthy and prosperous Ontario;

**AND WHEREAS** the Built for Zero Report Card, a monthly snapshot of homelessness in Durham Region, identifies at least 286 people were experiencing homelessness in January 2023, including 43 in Ajax;

**AND WHEREAS** the homelessness crisis is the result of the under investment and poor policy choices of successive provincial governments;

**AND WHEREAS** homelessness requires a range of housing, social service, and health solutions from government;

**AND WHEREAS** homelessness is felt most at the level of local government and the residents that they serve and while municipalities are doing their part, they do not have the resources, capacity or tools to address this complex challenge;

**AND WHEREAS** Ajax is addressing the homelessness issue by providing space to the Region for a temporary emergency shelter, as well as through the Homelessness Task Force, programs and services at the Ajax Library, the Ajax Locker Program, and various partnerships, all in addition to the hundreds of thousands of dollars contributed to homelessness issues through the Ajax Mayor's Gala;

**AND WHEREAS** the Association of Municipalities of Ontario (AMO) is calling for leadership and urgent action from the provincial government on an emergency basis to develop, resource, and implement a comprehensive plan to prevent, reduce and ultimately end homelessness in Ontario.

**NOW THEREFORE BE IT RESOLVED THAT**

- Ajax Council supports AMOs request that the Provincial Government urgently:

  a. Acknowledge that homelessness in Ontario is a social, economic, and health crisis.
  b. Commit to ending homelessness in Ontario; and
  c. Work with AMO and a broad range of community, health, Indigenous and economic partners to develop, resource, and implement an action plan to achieve this goal.

- A copy of this motion be sent to the Minister of Municipal Affairs and Housing; the Minister of Children, Community and Social Services; the Minister of Health; the MPP for Ajax; the Regional Chair for Durham; and to AMO.

CARRIED

10.5 **Establishing a Provincial Short Term Rental System**

Regional Councillor Lee and Councillor Henry introduced the motion and reviewed its contents.

Moved by: S. Lee
Seconded by: N. Henry

**WHEREAS** Ontario is facing a housing crisis and more can be done to ensure that new and existing housing units serve their intended use, which is to provide stable affordable housing options to the people of this province;

**AND WHEREAS** short term rental (STR) properties are sometimes prone to nuisances impacting others' enjoyment of their properties, notably in Ajax, noise, waste, excessive

parking needs, and violence;

**AND WHEREAS** in rural tourist destinations , locals have found themselves prices out of the housing market because landlords find it more profitable to list as an STR;

**AND WHEREAS** other provincial governments are stepping into the monitoring and enforcement of short term rentals, including Quebec, British Columbia, Nova Scotia, and Newfoundland which require STRs to register, or attain a business licence or permit in order to list with popular short term rental companies like Airbnb, and Vrbo;

**AND WHEREAS** STR hosts are also required to register for the Goods and Services Tax (GST) and Harmonized Sales Tax (HST) on what they earn;

**AND WHEREAS** requiring licencing for Ontario's STR market is a logical next step;

**NOW THEREFORE BE IT RESOLVED THAT:**

1. Ajax Council requests that the Province of Ontario establish a short term rental licencing and enforcement system; and

2. This motion be circulated to the Honourable Steve Clark, Minister of Municipal Affairs and Housing, AJAX MPP Patrice Barnes, lower-tier municipalities in Durham Region, the Association of Municipalities of Ontario, and Ontario Big City Mayors.

CARRIED

10.6 **Expanding Community Safety Zones**

Mayor Collier and Regional Council Crawford introduced the motion and reviewed its contents. Mayor Collier asked if community safety zones are restricted to school zones. Dhaval Pandya, Manager of Transportation Planning, responded to the question from Mayor Collier.

Moved by: S. Collier
Seconded by: M. Crawford

**WHEREAS** Section 214.1 of the Highway Traffic Act empowers municipalities to establish Community Safety Zones (CSZ) by by-law;

**AND WHEREAS** Council approved a process to establish CSZs on February 24, 2020;

**AND WHEREAS** the process directs that CSZs should only be implemented in locations where public safety is of special concern, with a rating system was established to assess potential CSZs on the basis of nine risk criteria, or at the discretion of Town staff or Council;

**AND WHEREAS** the number of schools fronting a road segment is one of the criteria used to assess potential CSZs;

**AND WHEREAS** other criteria used to assess potential CSZs include areas fronting or in the vicinity of community parks and playground, community centres, hospitals, seniors residents, and generally locations where public safety is of special concern;

**AND WHEREAS** Ajax currently has 14 CSZs;

**AND WHEREAS** of the 37 schools in Ajax, a large number are not in designated CSZs;

**AND WHEREAS** the Town can improve overall community safety by implementing CSZs in all school zones.

**NOW THEREFORE BE IT RESOLVED THAT:**

1. Council directs Transportation staff undertake the work necessary to implement CSZs in all school zones by the beginning of the 2023-2024 school year, including:

    a. Bringing forward any necessary by-law amendments required to implement Council's direction; and
    b. Identifying signage needs to Operations staff to facilitate the installation of all signage in accordance with the requirements of the Highway Traffic Act.

2. Funding be allocated to this unbudgeted capital project from the capital contingency reserve; and

3. A CSZ be established to accompany any future schools constructed in the Town of Ajax.

CARRIED

## 11. By-laws

Moved by: N. Henry
Seconded by: R. Tyler Morin

That By-law numbers 11-2023 to 19-2023 be read a first, second and third time and passed.

CARRIED

## 12. Notice of Motion

None

## 13. New Business - Notices & Announcements

Council Members highlighted upcoming events and activities including a community Ward 1 meeting on April 25, 2023, Eid ul Fitr Holiday on April 22, 2023, and a community Ward 2 meeting May 9, 2023.

## 14. Confirming By-Law

Moved by: S. Lee
Seconded by: L. Bower

That By-law number 20-2023 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on April 17, 2023, be read a first, second and third time and passed.

CARRIED

## 15. Adjournment

Moved by: R. Tyler Morin
Seconded by: L. Bower

That the April 17, 2023 meeting of the Council of the Town of Ajax be adjourned (9:58 p.m.)

CARRIED

_____
Mayor

_____
D-Clerk